# SEVENTEENTH AMENDMENT
# POPULAR ELECTION OF SENATORS

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## SEVENTEENTH AMENDMENT—POPULAR ELECTION OF SENATORS

### Amdt17.1 Overview of Seventeenth Amendment, Popular Election of Senators

The ratification of the Seventeenth Amendment was the outcome of increasing popular dissatisfaction with the original method of state legislatures selecting Senators set forth at Article I, Section 3, Clause 1.[1] As more people were able to exercise the franchise, the belief became widespread that Senators ought to be popularly elected in the same manner as Representatives.[2] Acceptance of this idea was fostered by the mounting accumulation of evidence of the practical disadvantages and malpractices attendant upon legislative selection, such as deadlocks within legislatures resulting in vacancies remaining unfilled for substantial intervals, the influencing of legislative selection by corrupt political organizations and special interest groups through purchase of legislative seats, and the neglect of other duties by legislators as a consequence of protracted electoral contests.

### Amdt17.2 Historical Background on Popular Election of Senators

Seventeenth Amendment:

> *The Senate of the United States shall be composed of two Senators from each State, elected by the people thereof, for six years; and each Senator shall have one vote. The electors in each State shall have the qualifications requisite for electors of the most numerous branch of the State legislatures.*
>
> *When vacancies happen in the representation of any State in the Senate, the executive authority of such State shall issue writs of election to fill such vacancies: Provided, That the legislature of any State may empower the executive thereof to make temporary appointments until the people fill the vacancies by election as the legislature may direct.*
>
> *This amendment shall not be so construed as to affect the election or term of any Senator chosen before it becomes valid as part of the Constitution.*

Prior to ratification of the Seventeenth Amendment, many states had adopted arrangements calculated to afford voters more effective control over the selection of Senators. Some states amended their laws to enable voters participating in primary elections to designate their preference for one of several party candidates for a senatorial seat and state legislatures generally elected the winning candidate of the majority. In two states, candidates for legislative seats were required to promise to support, without regard to party ties, the senatorial candidate polling the most votes. As a result of such developments, the year before the Seventeenth Amendment was ratified, at least twenty-nine states were nominating Senators on a popular basis, and, as a consequence, the constitutional discretion of the state legislatures had been reduced to little more than that retained by presidential electors.[1]

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[1] *See* ArtI.S3.C1.3 Selection of Senators by State Legislatures.

[2] *See* ArtI.S2.C1.2 Voter Qualifications for House of Representatives Elections.

[1] 1 G. Haynes, The Senate of the United States 79–117 (1938).

## Amdt17.3 Doctrine on Popular Election of Senators

Seventeenth Amendment:

> *The Senate of the United States shall be composed of two Senators from each State, elected by the people thereof, for six years; and each Senator shall have one vote. The electors in each State shall have the qualifications requisite for electors of the most numerous branch of the State legislatures.*
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> *When vacancies happen in the representation of any State in the Senate, the executive authority of such State shall issue writs of election to fill such vacancies: Provided, That the legislature of any State may empower the executive thereof to make temporary appointments until the people fill the vacancies by election as the legislature may direct.*
>
> *This amendment shall not be so construed as to affect the election or term of any Senator chosen before it becomes valid as part of the Constitution.*

Shortly after ratification of the Seventeenth Amendment, some courts took the position that if a person possessed the qualifications required to vote for a Senator, the person's right to vote for the Senator was not derived merely from the constitution and laws of the state that chose the Senator, but had its foundation in the Constitution of the United States.[1] Consistent with this view, federal courts declared that, when local party authorities, acting pursuant to regulations prescribed by a party's state executive committee, refused to permit a Black citizen, on account of his race, to vote in a primary to select candidates for the office of U.S. Senator, they had deprived him of a right secured to him by the Constitution and laws, in violation of the Seventeenth Amendment.[2] By contrast, the Supreme Court held that an Illinois statute that required a petition signed by at least 25,000 voters from at least fifty counties to form and nominate candidates for a new political party did not violate the Seventeenth Amendment, notwithstanding that 52% of the state's voters were residents of one county, 87% were residents of forty counties, and only 13% resided in the fifty-three least populous counties.[3]

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[1] United States v. Aczel, 219 F. 917, 929–30 (D. Ind. 1915) (citing *Ex parte* Yarbrough, 110 U.S. 651 (1884)).

[2] Chapman v. King, 154 F.2d 460 (5th Cir. 1946), *cert. denied*, 327 U.S. 800 (1946).

[3] MacDougall v. Green, 335 U.S. 281 (1948), *overruled on equal protection grounds in* Moore v. Ogilvie, 394 U.S. 814 (1969). *See* Forssenius v. Harman, 235 F. Supp. 66 (E.D.Va. 1964), *aff'd on other grounds*, 380 U.S. 528 (1965), where a three-judge District Court held that the certificate of residence requirement established by the Virginia legislature as an alternative to payment of a poll tax in federal elections was an additional qualification to voting, in violation of the Seventeenth Amendment and Art. I, § 2.